

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Writ Petition No. 13299 of 2023

In the matter of:

An application under article 102 of the
Constitution of the People's Republic of
Bangladesh.

AND

In the matter of:

Md. Alamgir Hossain Bhuiyan
... Petitioner

-Versus-

Government of Bangladesh and others
... Respondents

Mr. Rusho Mostafa, Advocate
... For the respondent Nos. 3-5

Judgment on: 01.09.2025

Present:

Justice Sardar Md. Rashed Jahangir
And
Justice Sheikh Abu Taher

Sardar Md. Rashed Jahangir, J:

On an application under article 102 of the Constitution of the
People's Republic of Bangladesh, the Rule Nisi was issued on
23.10.2023 as follows:

“Let a Rule Nisi be issued calling upon the respondents to show
cause as to why the auction notice published in the "Bangladesh
Protidin" dated 01.10.2023 under section 12(3) of the Artha Rin Adalat
Ain, 2003 for selling out the petitioner's mortgaged property
(Annexure-C to the writ petition) should not be declared to be without

lawful authority and of no legal effect and/or pass such other or further order or orders as to this Court may seem fit and proper.”

Under the case in hand, the petitioner has challenged the publication of the auction notice dated 01.10.2023 in the daily ‘Bangladesh Protidin’ purportedly under section 12(3) of the Artha Rin Adalat Ain, 2003 for selling the mortgaged property in auction scheduled to be held on 25.10.2023. On 22.10.2023 the writ petition has been sworn in and on 23.10.2023, this Court was pleased to issue Rule Nisi in tandem with an interim order of stay of all further proceedings of the auction pursuant to the notice.

The respondent Nos. 3-5 by filing an application apprised this Court that the property cannot be sold in auction due to the order of stay of this Court and the scheduled date of the auction i.e. 25.10.2023 has been expired in the meantime and as such the impugned auction notice published on 01.10.2023 in the daily ‘Bangladesh Protidin’ purportedly section 12(3) of the Artha Rin Adalat Ain, 2003 has no effectiveness, consequently the rule has become infructuous.

Considering the facts and circumstances of the case, the Rule is discharged.

No order as to cost.

The order of stay granted at the time of issuance of the Rule is hereby by recalled and vacated.

Communicate the order at once.

Sheikh Abu Taher, J:

I agree.